

**By and Between**

**NetCentric Technology, LLC**

**AND**

**FAIRBANKS JOINT CRAFTS  
COUNCIL**

**AT**

**GILMORE CREEK  
NOAA TRACKING STATION  
FAIRBANKS, ALASKA**

**JUNE 1, 2023**

**THROUGH**

**MAY 31, 2026**

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## **ARTICLE I PARTIES**

### **1.01 PARTIES**

AGREEMENT made effective the first day of June 2023 between Netcentric Technology, LLC., hereinafter referred to as the "Company," and the Fairbanks Joint Crafts Council, hereinafter collectively referred to as the "Union," for the Company's employees in the certified unit represented by the Union at the Gilmore Creek NOAA facilities at Fairbanks, Alaska.

### **1.02 PURPOSE**

The Union, representing employees of the Company, and the Company's desire to establish and maintain, through harmonious cooperation, a standard of conditions and procedures to provide for orderly collective bargaining relations, prompt and equitable disposition of grievances and fair wages, hours and working conditions for the employees covered by this Agreement.

### **1.03 RECOGNITION OF BARGAINING UNIT**

The Company recognizes the Union as the sole and exclusive collective bargaining representative, with respect to rates of pay, wages, hours and other conditions of employment, for all employees of the Company's Plant Maintenance activity at its NOAA/NESDIS Fairbanks CDA Station (Gilmore Creek), 1300 Eisele Rd, Fairbanks, AK 99712, Mile 13 Steese Highway, in the occupational classifications listed in Appendix A of this Agreement, EXCLUDING: All other employees including office and plant clerical employees, engineers, technical and professional employees, guards and all supervisors as defined in the Act.

Except in emergencies, the work which is within the scope of the Union's certification shall be performed by the employees in the bargaining unit.

### **1.04 CONDUCT OF UNION AFFAIRS, COLLECTION OF UNION DUES, FEES, OR ASSESSMENTS**

The Union shall assume all obligations and responsibilities for the collection of any union dues, fees, or assessments, except as agreed to by the Company and set forth herein.

The Company will deduct working dues from the employees' pay checks for each compensable hour, and/or a percentage of gross wages in an amount so designated by the Union, with proper authorization submitted to the Company by the employees so affected.

All monies collected for working dues by the Company shall be paid to the appropriate Craft within the Fairbanks Joint Craft Council as notified by the Union. The working dues that are deducted shall be paid monthly for all pay periods that fall in a calendar month (two pay periods for ten months a year, and three pay periods for two months a year). The

working dues that are deducted shall be paid monthly by the fifteenth (15th) of the month following the month in which they were deducted.

The Company fringe contributions shall be paid monthly in accordance with working dues deductions; except for the month of December which will be calculated thru the last day of the month (December 31<sup>st</sup>), and January which calculations will begin the first day of the month (January 1<sup>st</sup>). Fringe Contributions contributed on the employee's behalf shall be reported to the employee monthly.

The Company will deduct legal aid and or credit union checkoffs for each compensable hour in an amount so designated by the particular Craft involved, with proper authorization submitted to the Company by employees so affected.

All monies collected for legal aid and or credit union checkoffs by the Company shall be paid to the appropriate Craft within the Fairbanks Joint Craft Council as notified by the Union. The monies that are deducted shall be paid monthly by the fifteenth (15th) of the month following the month in which they were deducted.

#### **1.05 SPECIFIED ACTIVITIES NOT PERMITTED**

The Union agrees that neither the Union nor its members shall solicit membership on Company time, or conduct on Company time any Union activity other than the handling of grievances or the legitimate conduct of Union business in the administration of this Agreement in the manner and to the extent provided by the terms of this Agreement. Any employee or employees who violate this section of this Agreement shall be subject to disciplinary action by the Company.

#### **1.06 ACCESS TO COMPANY PROPERTY**

The Business Agent of the Union may visit the Company's Station office at any time during the Company's regularly scheduled workday. The Business Agent's initial contact on each visit shall be made with the Company's Resident Project Manager or designated representative. The Union understands and agrees that the security regulations concerning visitation to the Station must be observed.

When it is necessary for the Business Agent to visit the Station to confer with Union members on matters concerning the relationships existing between the Company and the Union as defined in this agreement, the Business Agent shall follow the prescribed regulations. The Union further agrees that such visits will not interfere with normal Station operations.

## **1.07 UNION SHOP**

It shall be a condition of employment that all employees of the Company covered by this Agreement who are members of the Union in good standing on the effective or execution date of this Agreement, whichever is later, shall remain members in good standing and those who are not members on the effective or execution date of this Agreement, whichever is later, shall on the thirty-first (31st) day following the effective or execution date of this Agreement, whichever is later, become and remain members in good standing in the Union. It shall also be a condition of employment that all employees covered by this Agreement and hired on or after its effective or execution date, whichever is later, shall, on the thirty-first (31st) day following the beginning of each employment, become and remain members in good standing in the Union.

## **1.08 EXCLUSIVE HIRING HALL**

All employees to perform services covered by this Agreement shall be secured through the offices of the Unions subject, however to the following:

- (a) The Company shall notify the Union of vacancies in classification covered by this Agreement which are to be filled from applicants for employment. Such notification shall include the classification in which the vacancy exists as well as the experience and/or skills necessary to perform the work required. Vacancies occur for the purposes of this Article when; employees have been out on paid leave for a period greater than three (3) weeks, retiring, quit, are terminated, or on LWOP that leave a position for any craft unfilled for more than two (2) work weeks; or, when the Company has a special project that requires extra employees whether the craft is represented full time or not.
- (b) The Union shall refer applicants for jobs, provided that the selection of applicants for referral shall be on a nondiscriminatory basis and shall not be based upon, or in any way affected by Union membership, bylaws, rules, regulations, constitutional provisions or any other aspect or observance or Union membership, policies or requirements.
- (c) The Company shall have the right to reject any job applicant referred by the Union. The Company shall provide in writing the reason for rejecting applicants to the appropriate Union within 24 hours of rejection (exclusive of Saturdays, Sundays and holidays).
- (d) The Company is an Alaska Native corporation, and will affirmatively hire Company Shareholders who meet the qualifications to fill the vacancy in accordance with the Alaska Native Claims Settlement Act. Therefore, the Union will have seventy-two (72) hours (exclusive of Saturdays, Sundays and holidays). If the Union cannot produce a qualified Company Shareholder within seventy-two (72) hours (exclusive of Saturdays, Sundays and holidays), the hall will then provide résumés for qualified applicants in accordance with 1.08 (b).

The Company agrees to hold the Union harmless for allegations of discrimination related to the Alaska Native Claims Settlement Act under this section.

(e) The provisions of this Section, as well as the standards or criteria to be adopted pursuant hereto, shall be posted in the Union offices upon appropriate Company bulletin boards, and in other places where notices to employees and applicants for employment are customarily posted.

## **1.09 PROVISION AGAINST DISCRIMINATION**

There shall be no discrimination by the Company or by the Union against any employee because of age, gender, gender identity, sexual orientation, race, color, national origin, creed, religion, being disabled veterans, certified mentally or physically handicapped, or because of Union activity or membership.

Wherever the male gender is used in this Agreement, it shall include the female gender where applicable.

## **1.10 RECOGNITION OF SHOP STEWARDS**

At no time shall the total number of Shop Stewards exceed three (3) in the Bargaining Unit. The Shop Steward(s) shall be an employee(s) of the Company and shall be selected by the Union.

## **1.11 UNION DUTIES OF SHOP STEWARDS**

The duties and activities of the Shop Steward (except where otherwise specifically agreed between the parties) while acting as such shall be limited to the handling of grievances and complaints which arise in the jurisdiction which the Steward represents and in accordance with the grievance procedure. Except when they are engaged in the settlement of grievances and complaints under the grievance procedure, all Shop Stewards shall continue at their regular work in the same manner as other workers. When a Shop Steward is required to leave regular duties as a worker for the orderly and expeditious handling of a grievance, complaint or other recognized Company-Union business, the Steward shall notify the appropriate supervisor or foreman. If necessary, a Shop Steward may be required to remain on regular work until a reasonable time is afforded to provide a substitute.

## **1.12 COMPLAINTS AND GRIEVANCES**

**Complaints:** An employee or employees having a complaint shall have the right to verbally present the complaint, directly or through the Shop Steward, to the immediate supervisor. If the complaint is not settled by the end of the employee's next scheduled shift and involves a matter subject to Grievance Procedure, it may be reduced to writing and considered a grievance subject to the grievance procedure herein described.

**Grievance:** "Grievance" shall mean and be limited to a dispute or difference between the Company and the Union, or employees so represented, with respect to the interpretation or application of any provisions of this Agreement. The Union shall not have any right to pursue, through the grievance procedure, any matter of dispute that arises outside the specific terms of this Agreement.

### **1.13 PRESENTATION OF GRIEVANCES**

All grievances shall be presented as soon as practicable after the occurrence upon which the same is based, but in no event later than ten (10) working days if the same is a dismissal grievance, or forty-five (45) calendar days if the same is a grievance arising from any other cause. The failure to submit a grievance within such periods shall constitute a bar to further action thereon. If it is determined under the Grievance Procedure that an adjustment in wages is appropriate, such adjustment shall be applied retroactively to the date of occurrence, provided that such date is not more than forty-five (45) calendar days prior to the date upon which the complaint was presented.

### **1.14 GRIEVANCE STEPS AND REPRESENTATIVES OF THE PARTIES THEREIN**

A duly presented grievance shall be negotiated, when necessary, in each of the following successive steps between the representatives of the parties specified in each step.

**Step 1:** Between the employee's immediate manager or designated representative and the appropriate Shop Steward (provided the steward has authority from the Union to so act), or Business Agent, in a meeting to be held within five (5) workdays after the grievance is presented. The Manager shall give the Shop Steward or Business Agent a written reply to the grievance within two (2) workdays after the said meeting. If this reply is unsatisfactory, the Shop Steward or Business Agent may appeal the decision to Step 2, provided such appeal is made within ten (10) workdays after receipt of the reply. A meeting in Step 2 shall be held within ten (10) workdays after receipt of the Company of notice of appeal.

**Step 2:** Between a Grievance Committee composed of the Manager of Human Resources of the Company and/or designated representative, and the Shop Steward, Business Agent, or designated representative. The Manager of Human Resources, or designated representative, shall give a written reply to the Shop Steward or Business Agent within five (5) working days after meeting with the Joint Crafts Shop Steward, Business Agent, or designated representative. If this reply is unsatisfactory, the Shop Steward or Business Agent may appeal the decision to Step 3, provided such appeal is made in writing within ten (10) work days (Saturdays, Sundays and holidays excluded) after receipt of the reply. A meeting in Step 3 shall be held within seven (7) workdays after receipt of the Company of notice of appeal.



**Step 3:** Between the manager of Human Resources Company, or designated representative, and the appropriate Business Agent of the Union, or designated representative. The manager of Human Resources shall give a written reply to the Business Agent within five (5) working days after the meeting. Failure by the Union to appeal a decision made in any step in the time limits specified shall constitute a bar to further action thereon of that individual grievance. If the Company fails to reply within the time limits set forth in Step 1 or 2, the grievance will automatically progress to the next step.

### **1.15 ARBITRATION**

During the term of this Agreement, any grievance which has not been finally settled or disposed of in accordance with the steps of the Grievance Procedure outlined above may be submitted to Arbitration within thirty-one (31) calendar days, by either party, after receipt of the Third Step reply.

The parties shall jointly request the Federal Mediation and Conciliation Service to submit a panel of five (5) arbitrators. The Union shall strike the names of two (2) of this list of five (5), and the Company shall then strike two (2) names; the remaining name shall be the arbitrator. If the parties agree to a local arbitrator who is a member of the American Arbitration Association, the above procedure may be waived.

The authority of the Arbitrator shall be limited to determining questions directly involving the interpretation or application of specific provisions of this Agreement, and the Arbitrator shall not determine any question that lies outside the specifications of this Agreement. The Arbitrator shall have no authority to add to, to subtract from, or to change any of the terms of this Agreement, to change an existing wage rate or to establish a new wage rate or to change production standards. No matter of dispute related to the Management Rights set forth in Section 5.13 shall be subject to arbitration. In no event shall the same question or issue be subject to arbitration more than once. The decision or award of such arbitrator shall be final and binding on each of the parties, and they will abide thereby subject to such applicable laws and rules and regulations as any Federal Agency having jurisdiction may impose. The cost of the Arbitrator's services, and any other expenses incidental to the arbitration which are mutually agreed to in advance, shall be shared equally by the parties. Each party shall bear the expenses of preparation and presentation of its own case. For the purpose of the Grievance Procedure, Saturdays, Sundays and holidays shall not be counted in computing the due date for any decision or appeal there from. Time limits for grievance meetings at any step may be extended by mutual agreement of both parties in writing. In addition, any grievance being submitted to arbitration is subject to final resolution between the President of the Fairbanks Joint Crafts Council and the Manager of Human Resources or their designated representatives, prior to the grievance being presented to the arbitrator.

### **1.16 DETERMINATION OF WORK SHIFTS**

The determination of the starting and ending time of daily and weekly work shifts for individual employees, including extended workweeks on a continuing basis, shall always be made by the Company. Such schedules may be changed by the Company from time to

time. The Company shall endeavor to notify the employee of any contemplated "shift change" at least seven (7) calendar days prior to same. If the employee is not given at least four (4) calendar days' notice of shift change, the employee will be paid two times the regular rate of pay for all hours worked on the first day of the new shift.

## **ARTICLE II SENIORITY POLICY**

### **2.01 SENIORITY POLICY**

The Company and Union accept the principle of employee seniority based upon continuous service credit from the first date of the employee's unbroken service with the NOAA/NESDIS Fairbanks CDA Station (FCDAS).

### **2.02 HOW SENIORITY WILL OPERATE**

After thirty (30) calendar days or more of continuous service with the Company, each employee shall have seniority in the occupational classification in which the employee is then working. When such occupational classification covers several crafts, then seniority will be acquired within the occupational classification on the basis of the craft of the employee. When thus established, such seniority shall equal the employee's total continuous service credit with the Company. If an employee has been officially transferred to a different occupational classification as shown by Company records, and has performed satisfactorily for a period of thirty (30) calendar days, the employee's seniority shall equal the employee's total continuous service credit with the Company, provided, however, no employee shall cross a Craft line without permission of the receiving Local Union.

When two or more employees otherwise would have identical seniority within a classification, seniority rank will be determined by alphabetical order of last names, a name commencing with "A" being the more senior. This procedure shall apply in all determinations of seniority. The seniority of an employee shall be lost or terminated under the same conditions which cause a break in continuous service credit and seniority as set forth in Article 2, Section 2.07, Continuity of Service.

### **2.03 HOW SENIORITY IS ACQUIRED**

Each new employee shall be hired as a probationary employee and shall not have seniority until the end of a probationary period of thirty (30) calendar days. Upon completion of such period, the employee shall be considered as a regular employee and shall have seniority from date of hire. When thus established, such seniority will equal the employee's continuous service credit. There shall be no requirement that the Company reinstate or rehire probationary employees if they are discharged during their probationary period. This probationary period may be extended for an additional thirty (30) calendar days with the mutual agreement of the Company, Union, and the individual employee. It is not the intent of the parties to increase the probationary period as a general policy.

## **2.04 LAYOFF AND REHIRING, AND WORK ASSIGNMENTS**

In the matter of layoffs and rehiring, the employee having the least seniority within a craft shall be the first to be laid off and the last to be rehired. This procedure will continue in order of least seniority as a layoff is required. Rehire shall be by inverse order of employees on layoff. In all cases of layoff, the Company will give no less than two (2) weeks' notice of contemplated layoff to the employee affected, or at the Company's option, the employee may be paid up to two (2) weeks' pay in lieu of notice.

For work assignments, the employee having the highest seniority within a craft shall have the first right of refusal for callouts, off-station assignments, and open positions.

## **2.05 CUSTOMER-DIRECTED SUSPENSION OF WORK**

Government directed suspension of work due to the inability to pass the federal budget shall not be considered a layoff under Article 2 section 2.04 under the following condition.

- (a) An official written notification of work stoppage from the Government does not allow the Company to satisfy the provisions set forth in Article 2, Section 2.04.
- (b) Employees affected shall be laid off in seniority order: Least senior employee being laid off first. Time lost due to such suspension shall not effect continuity of service.
- (c) Affected employees shall be recalled to work in order of seniority, the most senior employee being recalled first. Affected employees shall be returned to the position and shifts they originally held. Employees who had their shifts changed due to the work stoppage shall be returned to their original positions and shifts.
- (d) Employees affected under the above work stoppage shall be made whole for lost economics if Government funds are restored and designated for the affected employees during the term of the work stoppage.
- (e) If such suspension for work exceeds a two-week duration, employees will have up to seven (7) **calendar** days to report to work after the Company has notified employees of their need to return to work.

## **2.06 ACQUISITION OF CONTINUOUS SERVICE CREDIT**

The principle of continuity of service is recognized in accordance with and subject to the provisions of this Agreement. Each employee shall have continuous service credit with the Company dating from the first date of unbroken service with the NOAA Tracking Station (formerly NASA STDN Tracking Station).

## **2.07 CONTINUITY OF SERVICE**

The continuous service credit and seniority of an employee will be broken under the following conditions, and when so broken, such employee shall be for all purposes

considered a new employee if and when rehired:

- (a) Resignation or other voluntary termination of employment.
- (b) Absence in excess of three (3) consecutive working days without notice, either by telephone or written message by messenger to the employee's manager, unless satisfactory evidence of inability to do so is shown.
- (c) Discharge for just cause.
- (d) Unauthorized absence after the time limit of an authorized vacation or an approved absence, unless satisfactory evidence of inability to report for work is shown.
- (e) Failure to report to work after layoff within three (3) working days after the Company gives the employee actual notice to return to such work, and failure to notify the Company of the employee's intention to return to work within three (3) working days after such actual notice is given. If actual notice cannot be given, the employee shall have ten (10) working days to return to work after notice is sent by registered mail addressed to the last address furnished to the Company. This provision does not apply to recall periods of less than thirty (30) calendar days.
- (e) Layoff without recall to work within twelve (12) months from the date of such layoff.

## **2.08 SENIORITY OF UNION REPRESENTATIVES**

As long as there is work available which they are capable of performing, the Stewards shall hold seniority over all employees in their respective jurisdiction and shift. This paragraph shall apply only in the case of layoff(s).

## **2.09 SENIORITY PRIVILEGES FOR EMPLOYEES WHO ARE TRANSFERRED OUT OF THE BARGAINING UNIT**

When an employee has established seniority privileges in an occupational classification within the Bargaining Unit, and is, or has been, transferred to an occupational classification not included in the Bargaining Unit, such employee is thereby deemed to have retained previously acquired seniority privileges in the same occupational classification within the Bargaining Unit, and will accumulate such seniority privileges for a maximum of twelve (12) months during the time in which the employee was employed in an occupational classification not covered by the Bargaining Unit.

## **ARTICLE III SAFETY**

### **3.01 SAFETY**

The Company will make reasonable provisions for the safety and health of its employees during hours of employment. The Company and Union will cooperate in the investigation and elimination of hazardous conditions, and the improvement of the safety record of the site. The Company will adhere to Federal or State safety codes that apply to the site, and shall notify the Shop Stewards in writing, of any violations involving any bargaining unit member.

### **3.02 MEDICAL SERVICE, EVACUATION TRANSPORTATION, AND HOSPITALIZATION**

If it is determined that an employee at work at the NOAA Tracking Station site or temporarily assigned off station needs emergency hospital, medical, or surgical services beyond the capabilities of the local facilities, the Company shall provide evacuation transportation for the ill or injured employee to the nearest appropriate hospital, medical, or surgical facilities.

## **ARTICLE IV WAGE AND LEAVE PROVISIONS**

### **4.01 WAGE RATES**

The base hourly wage rates for employees covered by this Agreement shall be as set forth in the appropriate schedules provided by each local Union. The minimum hourly compensation for each classification utilized in the performance of work under this agreement include fringe benefits and are as stated in the attached Appendix A.

All Local Union's of the Fairbanks Joint Crafts Council shall provide the Company with an allocation letter specifying the distribution of wages and fringe benefits upon the effective date of this agreement and prior to any negotiated increases or changes. Notice shall be in writing to the Facility's Project Administration Manager prior to July 15 each year. If the notice is not submitted by close of company business hours on July 15 for the upcoming annual wage change, the full annual wage change shall be applied to wages. Any Local Union of the Fairbanks Joint Crafts Council requiring a reallocation of Trust fund contributions will certify such reallocation through the Company by letter and such change shall be made provided there is no increased cost to the Company. Notification should be received by the Company a minimum of thirty (30) calendar days in advance of the change. It is understood that the changes will be effective on the first pay period in the effective month.

## **4.02 PAYDAYS**

The Company will pay employees bi-weekly and will designate the regular paydays. If a payday falls on a Federal holiday, payday shall be on the preceding business day. The employee shall make adjustments to their time sheet at the direction of their manager. Should the employee not be available, the manager will provide written notice to the employee when changes are made to the employee's electronic timesheet. Employees can access and print their electronic timesheets by accessing the timekeeping system.

When an employee is laid off, the Company shall process all accrued earnings not later than seventy-two (72) hours from the time of termination, excluding Saturday, Sunday or a legal holiday.

## **4.03 NIGHT SHIFT PREMIUM**

An employee who is scheduled by the Company to work between the hours of 3:00 p.m. and 7:00 p.m. shall be paid a five percent (5%) premium, and an employee who is scheduled by the Company to work between the hours of 7:00 p.m. and 7:00 a.m. shall be paid a ten percent (10%) premium.

Employees that request a modified "day shift" schedule (if approved in writing) shall not be eligible for shift premiums.

## **4.04 CALL IN PAY**

An employee called in to work outside the employee's regular shift, shall be guaranteed a minimum of four (4) hours pay. Actual hours worked during the call-in shall be paid at the applicable overtime rate and any remaining hours not worked, which are necessary to provide the four (4) hour guarantee, shall be paid at the straight time hourly rate. An employee called in to work outside their regular shift will be allowed to work all hours of the regular shift on the day called in. Employees called in between 7:00pm and 7:00am shall receive night shift premium at a rate of 10 percent (10%) per hour.

An employee called or held over to work outside the employee's regular shift, but continuous with the employee's regular shift, shall be paid at the applicable overtime rate for time worked prior to or after the regular shift. Hours worked prior to a regular shift, shall count toward the computation of overtime later in the shift.

An employee reporting for work on the employee's regular shift shall be guaranteed a minimum of four (4) hours at the applicable rate unless notified not to report at the end of the previous shift.

An employee who works more than four (4) hours of the employee's regular shift shall be guaranteed the base rate pay for the regularly scheduled number of hours in the employee's established shift, or eight (8) hours, whichever is the lesser, provided, however, that (b) and (c) of this paragraph shall not apply where a strike, earthquake, fire, flood, Act of God, explosion or bombing cause damage which makes it impossible for the employee to resume work, in which case the employee will be paid for the hours actually worked at the applicable rate. An employee who stops work for personal reasons shall be entitled to pay for only those hours actually worked.

An employee required to be on standby shall be guaranteed a minimum of four (4) hours per day at the applicable rate unless notified they are no longer needed on standby. An employee shall be considered on standby when they are expected to remain in the area to respond for emergency purposes or immediate response, within a specified travel distance or within phone service range.

#### **4.05 WAGE RATES FOR NEW OR CHANGED OCCUPATIONAL CLASSIFICATIONS**

In the event the Company establishes a new or revised occupational classification, the hourly rate applicable shall be determined by negotiations between the Company and the Union. The Company shall notify the Union prior to the implementation of the new classification. Operations shall not be delayed through failure to agree immediately upon the rate applicable to any such occupational classification. In such cases, pending the results of negotiations, the Company will establish the new or revised occupational classification and the Company proposed rate applicable thereto and shall place such occupational classification and such rate into effect. A negotiated rate finally established which is higher than the Company proposed rate, will be paid retroactive to the date the employee started to work in such occupational classification.

The Miscellaneous Trades Specialist rate was established to cover FJCC craft unions that do not currently have workers employed on the project. When the Company needs a craft worker from an occupational classification outside their regular workforce in accordance with this paragraph, then the Company shall notify the FJCC and the Union(s) that represents the workers needed and the Union(s) shall provide the Company and the FJCC with a wage and benefit allocation of the Trades Specialist rate prior to the employee(s) being dispatched. The Company agrees to call employees out of the appropriate Union halls only for projects exceeding forty (40) hours with the appropriate Union Hall.

#### **4.06 PAY FOR WORK IN HIGHER RATED OCCUPATIONAL CLASSIFICATIONS**

When an employee is assigned to and works for a period of one (1) hour or more in a different occupational classification than they are normally assigned (i.e. trades specialist), the rate of which is higher than the rate of the employee's regular occupational classification, the employee will be paid at the rate of the higher occupational classification for the period during which the employee works in the higher occupational classification. The Company will not avoid payments as described above by assigning the work of the higher rated occupational classification to more than one (1) employee for the particular job on any one shift.



Payment at the higher rate beyond the one (1) hour minimum will be made in one-half (1/2) hour increments, and fraction thereof will qualify for one-half (1/2) hour payment.

#### **4.07 OVERTIME**

Payment for overtime hours worked shall be computed at the following rates:

Time and one-half (1-1/2) shall be paid:

- (a) For hours worked in excess of eight (8) in any one (1) "regular work day" or shift, or for hours worked in excess of forty (40) in a work week
- (b) For hours worked before or after but continuous with hours worked on a "regular shift".
- (c) For hours worked on shifts starting on the first (1st) "scheduled day off", or for hours worked on the sixth (6th) consecutive day of work.
- (d) For employees working a scheduled four (4) day workweek (per the rotating work schedule) all hours worked on the first (1st) "scheduled day off".

Double time shall be paid:

- (e) For hours worked on each seventh (7th) consecutive day of work or on the second (2nd) "scheduled day off".
- (f) For all hours worked in excess of sixteen (16) hours in any continuous period.
- (g) For employees working a scheduled four (4) day workweek (per the rotating work schedule) all hours worked on the second (2nd) and third (3rd) "scheduled day off".

Such computation will apply irrespective of whether they include hours before or after a shift and whether they extend into another workday.

When approved by the supervisor, an employee's absence of not more than eight (8) hours in any one (1) scheduled workday shall be treated as hours worked for overtime compensation purposes.

Incremental payment of overtime:

- (h) Employees held over to work approved overtime will be compensated a minimum of 1/2 hour at the applicable overtime rate, overtime worked beyond the 1/2 hour minimum will be paid in Six (6) minute increments.

#### **4.08 NOAA REQUIREMENTS**

Due to the twenty-four (24) hour per day operational nature of NOAA's Satellite Tracking Mission, it is agreed that all employees, if required by emergency circumstances, shall work whatever hours may be necessary in the judgment of the Company for effective operation; provided, however, that the Company shall schedule hours on a reasonable basis consistent with operational requirements.

**4.09 PYRAMIDING OF OVERTIME**

No employee shall receive more than one (1) overtime rate for the same hours worked, and if more than one (1) overtime rate is applicable to the same hours worked, the higher rate shall only be paid.

**4.10 HEIGHT PREMIUM**

Employees working on unprotected towers and structures in excess of twenty (20) feet above the surrounding base area, will receive premium pay of one and one-half (1-1/2) times their applicable rate for such time as they are performing work. Unprotected refers to structures not normally intended for walking, climbing, or standing, or where stairways, ladders, or platforms are not equipped with protective railings or cages. A minimum of one (1) hour of Height Premium shall be paid for each day the work is performed.

**4.11 LEAD PERSON**

The Company will designate the employee to perform the duties of lead person and notify the Union of the appointment. Seniority will be a factor if two (2) employees are equally qualified. Lead pay will be based solely on hours worked.

In the absence of the designated lead person, the Company will appoint another employee to the position of lead (not to exceed more than one change per day).

The Lead person will be paid a base rate of ten percent (10%) above their hourly wage rate. The lead person will be a working lead person and will be assigned regular duties in their craft.

**4.12 SEVERANCE PAY**

An employee, who meets the eligibility requirements defined herein, shall receive severance pay in accordance with the schedule defined below in the event the employee is laid off for lack of work for a period in excess of thirty (30) calendar days. No employee shall receive severance pay when the layoff is due to causes beyond the control of the Company, such as but not limited to, the following examples: Fire, flood, explosion, bombing, earthquake, or picketing.

| <u>Length of Continuous<br/>Site Service Credit</u> | <u>Severance Pay Allowance</u> |
|-----------------------------------------------------|--------------------------------|
| 2 years but less than 4 years                       | 40 hours pay                   |
| 4 years but less than 6 years                       | 80 hours pay                   |
| 6 years but less than 8 years                       | 120 hours pay                  |
| 8 years but less than 10 years                      | 160 hours pay                  |
| 10 years or more                                    | 200 hours pay                  |

Payment shall be made on the basis of the employee's base straight time hourly rate at the time of layoff. Severance pay shall be paid at the end of waiting period of thirty (30) calendar days from the date of layoff. An employee who is reinstated to employment with

the Company during the thirty (30) calendar day waiting period shall not receive a severance pay allowance.

An employee who receives a severance pay allowance and who is subsequently reinstated to employment with the Company within one (1) year from the date of layoff shall not again be eligible for an additional severance pay allowance until the employee has accumulated one (1) additional year of continuous service credit. Upon establishing one (1) year of additional continuous service credit after such reinstatement, the employee shall again be entitled to a severance pay allowance in accordance with continuous service credit if again laid off under the conditions herein provided.

In the event of termination by NOAA of its contract with the Company, for work to be performed at the Gilmore Creek NOAA Tracking Station at Fairbanks, Alaska, an employee shall not receive severance pay if the employee within thirty (30) calendar days after termination of employment or completion of the Company's contract with NOAA, whichever is later, is employed by or offered employment, or enters into an agreement for subsequent employment with a succeeding contractor under a follow-on contract in a position requiring the same, similar, or greater responsibility or skill.

#### **4.13 DESIGNATED HOLIDAYS**

The Company recognizes the following holidays: New Year's Day, President's Day, Good Friday, Easter Monday, 1 Floating Holiday, Memorial Day, Independence Day, Labor Day, Veterans Day, Thanksgiving Day, Day after Thanksgiving, and Christmas Day.

Floating Holiday must be pre-scheduled and approved by their immediate manager at least two weeks in advance, must be on a normally scheduled work day, the employee does not have the option to work that day and it must not adversely affect manning.

#### **4.14 HOLIDAY PAYMENT**

The twelve (12) designated holidays mentioned in Section 4.13 will be paid for provided employees covered by this Agreement meet all of the eligibility rules set forth below:

(a) Holiday Payment: When the above mentioned holidays are not worked by an employee the employee shall be paid eight (8) hours at the straight time hourly rate provided that the employee works (8) hours on the workday immediately preceding the holiday, as well as eight (8) hours on the workday immediately following the holiday. This requirement is satisfied if the employee is on a paid absence; however, it is not applicable to employees on unpaid absences. Employees who are required to work on any one (1) of the designated paid holidays, shall be paid time and one-half (1-1/2) for hours worked, plus holiday pay as designated above.

(b) Observance of Holidays: If a designated holiday falls on an employee's first (1st) scheduled day off, the holiday will be observed on the workday proceeding the day on which the holiday falls. If a designated holiday falls on the employee's second (2nd) or third (3rd) scheduled day off, the holiday will be observed on the workday following the day on which the holiday falls.

**4.15 VACATION POLICY**

It is the policy of the Company to grant a vacation to the regular employees as herein provided. Vacations shall be granted so far as possible at times most desired by the employee, but the Company reserves the right to schedule vacations at any time during the calendar year in order to insure orderly and efficient operation. Vacation allowance shall be computed on the basis of the employee's base straight time hourly rate at the start of the employee's vacation, and shall be paid for at eight (8) hours per day. Vacation time may be utilized in one (1) hour increments.

Vacations shall be scheduled for the calendar year during the month of January. When an employee forgoes any or all scheduled vacation at the request of the Company, the employee shall have the option to be paid for such vacation or be permitted to take such unused vacation within the following thirty (30) calendar days. The time for taking such rescheduled vacation shall be mutually agreed upon between the Company and the employee, giving consideration to the operating needs of the Company and the wishes of the employee. The Company will respond to leave or vacation requests within the following thirty (30) calendar days.

**4.16 ELIGIBILITY**

Paid vacation shall accrue to the employees at the following rates:

| <u>Years of Service</u>       | <u>Accrual Rate / Month</u> | <u>Accrual Rate / Year</u> |
|-------------------------------|-----------------------------|----------------------------|
| Less than 1 year              | 8.33 hours per month        | 100 Hours per Year         |
| 1 Year but less than 4 Years  | 13.5 hours per month        | 162 Hours per Year         |
| 4 Years but less than 9 Years | 18.16 hours per month       | 226 Hours per Year         |
| 9 Years or more               | 20.5 hours per month        | 254 Hours per Year         |

Employees' vacation bank will be capped at four hundred forty (440) hours.

Employees may cash out up to forty (40) hours annually in the month of November. Trust contributions shall be contributed for all hours paid.

Additional vacation without pay may be granted for up to 80 hours, ten (10) working days, provided that granting such leave would not hamper station manning and requirements. Unpaid vacation shall only be approved and used after all paid vacation has been exhausted. Any additional time off may be scheduled under Article 4.26 of this Agreement.

In computing the above vacation, employees will accrue vacation by 24 pay periods per year, or in accordance with the current payroll system.

Employees may use up to 48 hours of vacation in 1/10-hour increments with less than 24-hour notice, with supervisor's approval. Approval will not be unreasonably withheld.

**4.17 PAYMENT IN LIEU OF VACATION**

An employee who is terminated for any reason shall be granted payment in lieu of any accrued paid vacation.

#### **4.18 PAYMENT FOR TIME SPENT HANDLING GRIEVANCES**

All local Union business and activity shall be on the Shop Steward's own time, except time spent solely during the regular scheduled workday on recognized Company-Union business and administration of this Agreement, adjustment of grievances during the complaint stage, and adjustment of grievances during Steps No. 1 and 2 of the Grievance Procedure and for time spent assisting a Union Business Agent during preparation of Arbitration.

#### **4.19 APPLICATION FOR LEAVES OF ABSENCE**

Except for military service, no application for a leave of absence as described in this Article will be considered unless it is applied for in writing and presented to the Resident Project Manager.

#### **4.20 SICK LEAVE**

One hundred sixty (160) hours sick leave will be granted to each full-time employee on January 1 of each year regardless of length of service. Newly hired full-time employees will accrue sick leave on a daily basis for the remainder of their first calendar month of employment then pro-rated based on the number of months remaining in the year. Temporary employees will accrue sick leave on an hourly basis for all time worked until placed in a full-time position. Hourly accrual shall be at the rate of 0.077/hr.

An employee may be allowed personal illness or injury, or preapproved personal business leave a maximum of sixty (60) hours in any calendar year without presentation of a medical certificate by the employee. Management retains the right to investigate the validity of any sick leave taken beyond the initial 60 hours in any calendar year. Absences resulting from a pre-scheduled appointment may be charged in one-tenth (1/10th) hour increments when supported by medical certification of completion. In the event an employee becomes ill at work, an absence resulting from this illness may be charged in one-tenth (1/10th) hour increments.

Employees shall be allowed to accumulate their unused sick leave in a catastrophic illness account for use when hospitalized or for other unforeseeable accidents or serious illnesses. Employees will be able to accumulate no more than a total of five hundred (500) hours in their catastrophic illness account. The following procedure will be followed with regards to using the catastrophic illness account:

- (a) Employees will use their current year's sick leave bank, until it has a balance of twenty (20) hours or less.
- (b) If necessary, the employee will then be allowed to use the catastrophic account balance.
- (c) The employee may then use all remaining vacation.

(d) **“Donation of Vacation for Sick Leave”:** With Project Management approval, employees may donate vacation to a coworker when all paid time off has been exhausted by the donee as a result of long-term disability or catastrophic illness. Donated vacation may be used before receiving unpaid leave of absence. Receipt of donated vacation is not a factor in determining how long an employee may be absent due to inability to perform their job. Employees may donate vacation at a minimum of four hours.

1. Each employee wishing to donate vacation must submit a written request to the Project Administration Manager with the following information:
  - Donee and Donor names
  - Number of hours to be donated.
2. Employer will transfer the donated leave hours to the donee’s vacation account for use.
3. Once vacation leave donation is approved, the leave becomes irretrievable by the donor.

An employee having exhausted paid sick leave and having sixty (60) calendar days or more of continuous service credit with the Company, and who shall be found and certified by an examining physician to be unable to perform the employee’s regular assigned duties with the Company because of disabling sickness, pregnancy or injury, shall receive a leave of absence without pay, but with service credit and seniority accumulating while such conditions continues. If the disability continues beyond twelve (12) months and the employee has not returned to work, the employee’s continuous service credit and seniority will be broken and terminated.

#### **4.21 FAMILY MEDICAL LEAVE ACT (FMLA)**

The Company will comply with the requirements of the Family Medical Leave Act (FMLA). An employee who has worked at least 1,250 hours during the last twelve (12) months and has completed one (1) year or more of service may receive a leave of absence without pay for up to twelve (12) workweeks during any twelve (12) month period, when the leave is taken for one or more of the following circumstances:

- (a) The birth of a child and to care for the newborn child within one year of birth;
- (b) The placement with the employee of a child for adoption or foster care and to care for the newly placed child within one year of placement;
- (c) To care for the employee’s spouse, child, or parent who has a serious health condition;
- (d) A serious health condition that makes the employee unable to perform the essential functions of their job;

(e) Any qualifying exigency arising out of the fact that the employee's spouse, child or parent is a covered military member on "covered active duty", or Twenty-six workweeks of leave during a single 12-month period to care for a covered service member with a serious injury or illness if the eligible employee is the service member's spouse, son, daughter, parent, or next of kin (military caregiver leave).

#### **4.22 LEAVE OF ABSENCE FOR UNION ACTIVITY**

Any employee with at least six (6) months of continuous service credit, shall, on written request of the Union, be granted a leave of absence for Union activity for a one (1) year period. Extensions of one (1) year duration shall be requested and granted on written request of the Union prior to the termination of such leave. Continuity of service and full seniority privileges shall be retained and accumulated during such leaves of absence. When the Union activity for which such leaves of absence are granted shall cease, the Union shall immediately notify the Company in writing and if application is made therefore within ten (10) working days thereafter, such Union member will be given re-employment in the Union members former position, if same still exists, or a comparable position, in accordance with the employee's seniority privileges and at the applicable wage rate at the time of return. On written request of the Union and approval of the Company, employees shall be entitled to leave of absence, without pay, to attend official Union conventions. The number of employees to be granted such leaves of absence shall be discussed between the Company and the Local Union.

#### **4.23 MILITARY LEAVE**

Employees will be granted military leave consistent with the Uniform Services Employment and Reemployment Rights Act and policies of NetCentric Technology, LLC.

#### **4.24 OTHER APPROVED ABSENCE**

Leaves of absence may also be granted for other miscellaneous reasons. Application by the employee for such approved absence should be made in writing to the immediate supervisor. The granting of the leave shall be the sole prerogative of the Company. If a leave of absence is granted under the above conditions, the cost of all transportation and other expenses shall be borne by the employee; the employee's pay shall cease upon the employee's last hour worked; and no allowance of any kind shall be paid to the employee during the leave. Failure to return from leave of absence on the date specified, unless prior approval of the resident Project Manager has been obtained, shall be just cause for discharge.

#### **4.25 JURY DUTY ABSENCE AND PAYMENT**

An employee who is called for jury duty or who is subpoenaed to appear in court in Alaska as a witness, will be compensated by the Company for the straight-time hours the employee was thereby required to lose from the regular work schedule, but not to exceed five (5) eight-hour (8) days per week, computed at the employee's established basic hourly wage rate. However, when subpoenaed by a party other than the Company, the employee will not be compensated if the employee, the Company, or the Union is a party in the case,



or if the employee has any direct interest or financial interest in the case. Payment shall be made so long as such jury duty or court appearance continues, only upon presentation of documentary proof of jury duty or court appearance, and the payment received therefore. Continuous Service credit and duly established seniority privileges will accumulate during such leaves.

#### **4.26 PAYMENT FOR ABSENCE IN THE EVENT OF DEATH IN THE IMMEDIATE FAMILY**

Employees, in the event of death in their immediate families, shall be protected by the Company against loss of their straight time hourly wages for up to five (5) days absence on days other than their first (1st) or second (2nd) scheduled day off for the number of hours in their regular shift, but not to exceed eight (8) hours per day. For the purposes of this payment, the immediate family includes the employee's mother, father, children, mother or father of employee's children, brothers, sisters, grandparents, spouse/domestic partner and spouse's/domestic partner's mother and father, stepchildren, step-parents, aunts, uncles, nieces and nephews. When death occurs which requires travel by the employee outside the state of Alaska, the employee will be allowed up to five (5) additional days of absence which will be unpaid.

#### **4.27 LEAVE – UNPAID**

Subject to the approval of Management, an employee may take a maximum of forty-five (45) consecutive calendar days leave without pay during a contract year without loss of seniority rights, benefits, or accrual time.

#### **4.28 CIVIC AND POLITICAL ACTIVITIES LEAVE**

An employee may be granted leave to participate in civic, social, or political activities that contribute to the general welfare and betterment of the community. For purposes of this Article, such activities shall include the following:

- (a) Activities in support of political parties seeking to influence election of candidates to Federal, State or Local office.
- (b) Serving on school boards, or councils, youth group advisory committees, human rights organizations, and environmental protection groups.
- (c) Participation in community or business-sponsored civic activities, such as the United Way and Civil Defense.
- (d) Leave may be granted to an employee who is elected or appointed to a full-time public, political office. Such leave shall be effective on the first (1st) scheduled working day of absence and may be granted for the employee's initial term of office, and may be renewed for each succeeding term of office upon written request by the employee.

This leave shall be without pay and seniority and continuous service credit shall accumulate during such leaves of absence for a maximum of twelve (12) months.

#### **4.29 TRAINING**

Upon prior written approval by Project Management, costs for professional licenses, medical certificates, fitness testing, and special training not provided by their respective Union's training centers will be paid by the Company. This includes training required as a condition of employment or by state, federal, or local regulations. Approval and payment may be withheld without adequate processing time and/or proper documentation. All training must be pre-approved in writing by the Project Manager or their designee prior to training being scheduled.

#### **4.30 TEMPORARY OFF-STATION ASSIGNMENTS**

The following shall be the Company's policy with respect to the payment of wages and the reimbursement of expenses to an employee who is on a temporary assignment at a location other than the FCDAS at Fairbanks, Alaska.

Coach airfare for the employee, the Company retains the right to establish reasonable costs with respect to airfare and ground transportation. Ground transportation at actual cost, including automobile rental if authorized.

Government per diem rates for meals and lodging based on the Joint Travel Regulations (JTR) at the time of travel.

When consistent with operational requirements, the Company will make a reasonable attempt to schedule travel during an employee's regularly scheduled shift.

If an employee is scheduled to travel on a Scheduled Day Off (SDO), the employee shall be paid the lesser of actual travel time per day, or eight hours per day at the applicable SDO rate.

Travel time begins up to two hours prior to scheduled airline departure and will end upon arrival at the temporary off-station assignment location; the subsequent return will be treated likewise.

The Company will directly pay for the cost of airfare, car rental, and lodging in accordance with this article.

The Company will provide means of payment for anticipated travel expenses prior to the employee's departure. If a cash payment is advanced to the employee, seventy-five percent (75%) of the anticipated per diem will be allowed.

The Company will be responsible for the cost of transportation of tools and/or equipment needed at the off-site location, to include cold weather gear. The employee will be responsible for any additional costs incurred due to excess weight/size of personal items. Current airline weight/size guidelines will apply.

The Company will process reimbursement for the employee's out of pocket expenses within ten (10) business days of complete submittal of expense voucher, or receipts.

## **ARTICLE V HOURS OF WORK AND OVERTIME**

### **5.01 DEFINITIONS**

(a) **"Regular Work Week"**: "Regular work week" for all employees shall begin at 12:01 a.m. Saturday and end at 12:00 midnight the following Friday night (i.e., seven (7) consecutive regular work days Sunday to Saturday, inclusive.) All continuous hours worked in a work shift that begins on the seventh (7th) "regular work day" shall be compensated for in the workweek in which the shift started.

(b) **"Regular Work Day"**: For the determination of overtime worked in the "regular work week," on "scheduled days off" and on holidays, the "calendar day" (i.e., from 12:00 midnight to 12:00 midnight—twenty-four (24) consecutive hours) shall be used. In all cases, the first "regular work day" in the "regular work week" will begin at the time the "regular work week" begins (normally 12:00 midnight), and hours worked on a shift starting in the "regular work day" shall be counted as worked in such "regular work day."

(c) **"Regular Shift"**: A "regular shift" shall be scheduled in advance, and shall consist of a specified number of consecutive hours.

It is understood by the parties there will be no recognized lunch period and the workday will consist of eight (8) consecutive hours. If employees abuse the privilege of eating lunch during their work hours such abuses will be called to the attention of the Union. Failure by the Union to correct the situation will result in the shift being eight and one-half (8-1/2) hours in duration with an unpaid one-half (1/2) hour lunch period.

(d) **"Scheduled Day Off"**: The "scheduled day off" shall be a "calendar day" during which no "regular shift" is scheduled to start for the employee.

(e) **"Normal Work Schedule"**: The employee's "normal work schedule" shall consist of five (5) "regular work days", Monday through Friday, in each "regular work week," with two (2) consecutive days on which the employee is not regularly scheduled to work which shall be the employee's "scheduled days off."

(e) **"Rotating Work Schedule"**: For employees assigned to a rotating shift assignment, the employee's "normal work schedule" will consist of the following work situations: Five (5) "regular work days" in the "regular work week" with two (2) consecutive days on which the employee is not regularly scheduled to work, and four (4) "regular work days" in the "regular work week" with three (3) consecutive days on which the employee is not regularly scheduled to work.

## **5.02 RECOGNITION OF SECURITY OBLIGATION**

The Union recognizes that the Company has certain obligations in its contracts with the Government pertaining to security, and that security is vital to the Company and the Union in carrying on their part of the Satellite Tracking effort. Therefore, in the event that the U.S. Government, through its duly authorized representatives concerned with security, advise or have advised the Company that any employee in the bargaining unit covered by this Agreement has had a security clearance or access authorization denied, suspended, or revoked, or in the event authorization to enter the Gilmore Creek NOAA Facilities, Fairbanks, Alaska, and/or Restricted Areas thereof, is denied or withdrawn, it is mutually agreed by the Company and the Union that such employee, consistent with security reasons, shall be subject to any action by the Company as to the employee's employment, including but not limited to termination. No such employee shall have any seniority rights under this Agreement while such determination is outstanding.

In the event, however, that review duly made by the appropriate Governmental authority shall result in reversal in the original ruling, all seniority benefits and other employment rights of an employee shall be restored, and if the employee has been removed from employment for security reasons and such reversal is obtained after removal, the employee shall be offered reinstatement in accordance with the employee's accumulated seniority.

The Company, all representatives of the Union having access to the premises, and all employees are required to comply with applicable Government security regulation when on the Gilmore Creek NOAA Facilities, Fairbanks, Alaska.

The Company and the Union agree that security information will be revealed only to the persons properly cleared and required to have the information by the Government

## **5.03 FAILURE TO OBTAIN PERSONAL ACCESS AUTHORIZATION**

If an employee has not been granted an unescorted access authorization, when required by security regulations, within sixty (60) calendar days from the date of employment, the Company may terminate the employee's employment.

## **5.04 RETIREMENT PLAN**

With respect to the employees who are participants in their particular Local Union's Retirement Plan by virtue of Trust Agreements between the Union and their employers, the Company agrees to participate as an individual employer and will contribute to the applicable Trust Fund according to the allocation letter provided by each Local Union for each compensable hour credited to employees for the purpose of retirement benefits as specified in said Trust Agreements. It is understood and agreed that the contributions are to be computed solely on the total number of compensable hours, including paid vacations, and are not to be included in wages or the computations of overtime.

## **5.05 SUPPLEMENTAL INCOME 401(k) PLAN**

The employees covered by this Collective Bargaining Agreement will be eligible to participate in the Supplemental Income 401(k) Plan under the terms and conditions contained herein. Participation will be voluntary, but will be governed exclusively by the terms and provisions of the Plan. In addition, if employees wish to participate in their respective Union's individual defined contribution plan, the Company will provide the payroll administration necessary to accomplish said contributions.

In consideration of this agreement to allow participation by covered employees, the Union hereby acknowledges and waives any right it may have to request bargaining over any feature of the Plan or participation in the Plan by any employee represented by the Union. This waiver shall remain in full force and effect while any represented employee continues to participate in the Plan and shall be deemed by the parties to be irrevocable for that period of time.

It is further understood and agreed that this Plan participation agreement shall be limited to the duration of the present Collective Bargaining Agreement, unless terminated earlier by mutual consent of the parties. In the event the parties decide to extend Plan participation beyond the current agreement, they may do so by mutual consent at any time.

## **5.06 HEALTH AND WELFARE PLAN**

With respect to the employees covered by this Agreement, the Company agrees to participate as an individual employer in the various Health and Security Plans established by Trust Agreements as between the Local Union of the Joint Crafts Council and the Trustees, various employer associations and individual employers thereto subscribing. It is understood and agreed that the Company shall contribute to the applicable Trust Fund according to the allocation letter provided by each Local Union for each compensable hour credited to employees for the purpose of group insurance as specified in said Trust Agreement. The contributions are to be computed solely on the total number of compensable hours, including paid vacations, and are not to be including in wages or the computation of overtime.

## **5.07 NOTICES**

Whenever notice is given under the terms of this Agreement, from either party to the other, it shall be in writing. Notice to the Company shall be addressed to the Resident Project Manager, Fairbanks Command and Data Acquisition Station, 1300 Eisele Road, Fairbanks, Alaska 99712. Notice to the appropriate Local Union shall be addressed to the Business Agent or designated representative who shall keep the Company informed of the correct address. Employees shall keep the Resident Project Manager informed of their correct address, and in case of notice by the Company to such employees, it shall be by certified mail with a copy to the appropriate Local Union. Such notice shall be sent to the last known address furnished to the Resident Project Manager by the employee, and shall be deemed to have been given as of the date receipted for, or if returned to the Resident

Project Manager due to the employee's having failed to keep the Resident Project Manager informed of correct address, the date of such notice is returned.

#### **5.08 BULLETIN BOARDS**

The Company agrees to provide a suitable number of bulletin boards for posting of Local Union publicity. Material posted shall be limited to notices of Local Union meetings, Local Union newspaper items, and Union recreation and social activities. It is agreed that only notices approved by the Company shall be posted. Approval of such posting shall not be unreasonable withheld. It is further agreed that there shall be no other general distribution or posting by employees of any other literature on Company property without prior approval by the Company.

#### **5.09 COMPANY-PROVIDED TOOLS**

The Company shall determine and provide the type and quantity of tools necessary for the performance of assigned tasks. Each employee shall be responsible to account for the tools and equipment so supplied, ordinary wear and tear excepted. Tools and test equipment assigned to individual employees which become lost, damaged, or stolen through the employee's proven negligence, shall be replaced or paid for by the employee.

#### **5.10 COLD WEATHER CLOTHING**

At management discretion Cold Weather clothing will be made available for employees as needed. Appropriate safety footwear will be provided to employees who require such footwear in the performance of their job. All Company provided Cold Weather Gear will be replaced as required based on fair wear and tear and shall remain on site at all times.

#### **5.11 COMPANY PROVIDED EQUIPMENT**

The Company will provide two pairs of coveralls for eligible employees. The Company will also coordinate to replace worn or damaged coveralls. On-site laundry appliances and detergent are provided.

The Company will reimburse employees for prescription safety glasses, up to a \$250 limit over a two (2) year period, upon presentation of a receipt from a medical provider.

#### **5.12 STRIKES, LOCKOUTS AND RELATED INTERRUPTION OF WORK**

There shall be no strike, work stoppage, slow down, sit down, refusal to handle merchandise, refusal to work, boycott, or picketing by the Union or its representatives or members, or lockout on the part of the Company during the term of this Agreement.

Recognizing that there are several parties comprising the certified Union, and further, that the Company and the Union agree that continuity of work is imperative to the mission of NOAA, the Union agrees that there shall be no work stoppages due to jurisdictional disputes.

### **5.13 RECOGNITION OF RIGHTS & FUNCTIONS OF MANAGEMENT**

Except as otherwise expressly provided in this Agreement, nothing herein shall limit the Company in the exercise of the rights and functions of ownership or management, and such rights and functions of ownership or management shall not be subject to arbitration in any respect. Accordingly, the Company has among others, the right: to select its supervisory personnel (supervisors as defined in the NLRA as amended), to hire new employees, and to direct the working force; to discipline, suspend or discharge employees for cause; to promote, transfer or lay off employees; to make such rules and regulations as the Company considers necessary or advisable for the orderly and efficient conduct of its business, and to require employees to observe such rules and regulations, provided the same are not inconsistent with the express provisions of this Agreement; to decide the number and location of its work force; to decide and determine the methods, quality standards and schedules of operation; and to determine and designate all occupational classifications it has to offer its employees. It is agreed that the enumeration of the rights and functions of management herein reserved shall not be deemed to exclude other rights or functions of ownership or management not so enumerated. The contract provisions set forth herein shall be the sole source of any rights the Union may assert in arbitration. Management's rights not abridged are not subject to arbitration.

### **5.14 WAIVER**

The parties acknowledge that during the negotiations which resulted in this Agreement, each had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter not removed by law from the area of collective bargaining, and that the understandings and agreements were arrived at by the parties after the exercise of that right and opportunity as set forth in this Agreement. The Agreement may be amended by mutual consent of the parties in writing with a "Letter of Agreement" for such subject or matter that may not have been within the knowledge or contemplation of any of the parties at the time this Agreement was negotiated or signed.

### **5.15 EFFECT OF LAW**

In the event that now or hereafter there is any State or Federal law or any directive, order, rule or regulation made pursuant thereto, which is in conflict with any provision or provisions of any agreement between the parties, the same shall supersede such provision or provisions and thereafter shall govern and control the relations and conduct of the parties so long as such law, directive, order, rule or regulation shall remain in force and effect. In the event that this or any other agreement existing between the parties hereto, now or hereafter requires the approval of any Government authority before becoming effective, the same shall be subject to such approval. Furthermore, it is mutually agreed that within thirty (30) calendar days after such provision or provisions become unlawful, the parties shall meet to discuss a modification of such provision or provisions to comply with the law. In all other respects, the provisions of this Agreement shall continue in full force and effect for the duration of this Agreement.

## **5.16 TERM & NOTICE OF CHANGE OR TERMINATION**

The Agreement shall be effective June 1, 2023, and shall continue in full force and effect until 11:59 p.m., May 31, 2026, and thereafter be automatically renewed from year to year, unless notice in writing shall be given by either party to the other of changes desired in the Agreement or of its termination; at least ninety (90) calendar days prior to May 31, 2026 or ninety (90) calendar days prior to and not before one-hundred-and-twenty (120) calendar days prior to a subsequent applicable expiration date after automatic renewal. Both parties agree and fully understand that even though this Agreement has an expiration date of May 31, 2026, a fully negotiated and signed Agreement must be submitted to the Department of Labor to satisfy that Agency's requirement of sixty (60) calendar days prior to May 31 to ensure the affected wages and benefits are set as the established prevailing wages for covered employees.

If the parties do not reach an agreement with respect to such proposed changes, or a new agreement in the event termination notice has been given prior to said expiration date, then this Agreement shall terminate on its expiration date. The parties may, however, by mutual consent, extend this Agreement for a period of time specified to allow further negotiations.



## Appendix A

The compensation rates will be increased the first full pay period after June 1, 2023, and the first full pay period after June 1<sup>st</sup> of each subsequent year for the term of this Collective Bargaining Agreement.

June 2023 – (5.0%) percent total package increase  
 June 2024 – (4.0%) percent total package increase  
 June 2025 – (4.0%) percent total package increase

| <u>Classification</u>  | <u>Total Wage and Benefit Rates</u> |                  |                  |
|------------------------|-------------------------------------|------------------|------------------|
| <u>POWERHOUSE</u>      | <u>June 2023</u>                    | <u>June 2024</u> | <u>June 2025</u> |
| Operating Engineer     | \$78.19                             | \$81.32          | \$84.57          |
| Electrician            | \$78.19                             | \$81.32          | \$84.57          |
| <u>MAINTENANCE</u>     |                                     |                  |                  |
| Operating Engineer     | \$78.19                             | \$81.32          | \$84.57          |
| Electrician            | \$78.19                             | \$81.32          | \$84.57          |
| Plumber                | \$76.73                             | \$79.80          | \$83.00          |
| Misc. Trade Specialist | \$78.19                             | \$81.32          | \$84.57          |
| Laborer                | \$74.20                             | \$77.17          | 80.26\$          |